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|   |                                                      | <p>including one based on privilege or on the protection for work product . . . .” (Code Civ. Proc., § 2031.300(a).) Defendant Pacific Medical Towers Owners Association shall produce documents and provide responses, without objections, to Plaintiff’s Production of Documents, Set No. One by December 20, 2023.</p> <p>Plaintiff’s request for sanctions is <b>GRANTED</b>. Defendant Pacific Medical Towers Owners Association shall pay sanctions in the amount of \$1,000.00 to Plaintiff Brent Owen Nichols by December 20, 2023. (See, e.g., Code Civ. Proc., § 2023.010(d); <i>id.</i> § 2031.300(c).)</p> <p>Plaintiff to give notice.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| 6 | Pascual vs<br>Huntington Valley<br>Healthcare Center | <ol style="list-style-type: none"> <li>1. <b><u>Petition to Compel Arbitration</u></b></li> <li>2. <b><u>Case Management Conference</u></b></li> </ol> <p><b>TENTATIVE RULING:</b></p> <p><u>Petition to Compel Arbitration.</u></p> <p>Defendant Douglas Fir Holdings, dba Huntington Valley Healthcare Center moves to compel Plaintiffs Myrna Pascual, Myrine Smith, Ronald Pascual, Normal Pascual, Anthony Pascual, and Serafin Pascual, Jr., by and through his successor in interest Myrna Pascual to arbitrate the claims asserted in this lawsuit. For the following reasons, the petition is <b>GRANTED in part and DENIED in part</b>.</p> <p><u>The Arbitration Agreement</u></p> <p>The Arbitration Agreement at issue provides in pertinent part:</p> <p>It is understood that any dispute as to medical malpractice, that is as to whether any medical services rendered under this contract were unnecessary or unauthorized or were improperly, negligently, or incompetently rendered or not rendered, will be determined by submission to arbitration as provided by the Federal Arbitration Act, 9 U.S.C. Section 1 <i>et seq</i> (“F.A.A.”)....</p> <p>It is understood that any and all other disputes, controversies, demands, or claims that relate to or arise out of the provision of services by the Facility to Resident, including, but not limited to, any action for injury or death arising from negligence, wrongful death, intentional tort, or statutory causes of action ... will be determined by submissions to arbitration as provided by the F.A.A.</p> |

...

This Agreement is binding on all parties, including the Resident's personal representatives, agents, executors, family members, successors in interest, and heirs. The Resident's representatives, agents, executors, family members, successors in interest, and heirs who execute this agreement below as the "Resident's Agent" are doing so not only in their representative capacity for the Resident, but also in their individual capacity.

...

NOTICE: BY SIGNING THIS AGREEMENT YOU ARE AGREEING TO HAVE ANY ISSUE OF MEDICAL MALPRACTICE DECIDED BY NEUTRAL ARBITRATION AND YOU ARE GIVING UP YOUR RIGHT TO A JURY OR COURT TRIAL. SEE ARTICLE 1 OF THIS AGREEMENT.

NOTICE: BY SIGNING THIS AGREEMENT YOU ARE AGREEING TO HAVE ANY CLAIM OTHER THAN A CLAIM FOR MEDICAL MALPRACTICE DECIDED BY NEUTRAL ARBITRATION AND YOU ARE GIVING UP YOUR RIGHT TO JURY OR COURT TRIAL. SEE ARTICLE II OF THIS AGREEMENT.

(Dennis Dec., Ex. 1.)

#### The FAA Governs

The Federal Arbitration Act ("FAA"), which includes both procedural and substantive provisions, governs agreements involving interstate commerce. There is no dispute that the FAA governs enforcement of the contract here, as it states that any dispute must be determined by submission to arbitration as provided by the FAA. (Dennis Dec., Ex. 1.)

Defendants submitted an Advance Health Care Directive signed by Decedent Serafin Z. Pascual, Jr. designating Myrna Pascual as Decedent's agent to make health care decisions. Myrna's authority to make such decisions became effective "when [Decedent's] primary physician determines that I am unable to make my own health care decisions..." (Dennis Dec., Ex. 3.)

In an email dated July 6, 2023, Plaintiffs' counsel conceded "for the purposes of the motion to compel arbitration that decedent was unable to make his own healthcare decisions at the time the arbitration agreement was purportedly executed." (Wang Dec., Ex. 6.) Thus, Defendants have established Myrna's authority to bind Decedent to the arbitration agreement.

Defendants have met their burden of demonstrating the existence of a valid arbitration agreement with Plaintiff decedent. (Dennis Dec. and Wang Dec.) The motion is **GRANTED** as to the causes of action for 1) elder abuse – neglect, 3) negligence, and 4) violation of Residents’ Bill of Rights (Health and Safety Code Section 1430(b)).

Although the agreement covers Plaintiff Decedent’s claims arising out of his admission at AHC, it does not cover the wrongful death claim brought by Plaintiffs Myrine Smith, Ronald Pascual, Normal Pascual, and Anthony Pascual (the “Nonsignatory Plaintiffs”). The Nonsignatory Plaintiffs’ wrongful death claim is personal to the Nonsignatory Plaintiffs and lies independent of any survivor claims. (*Daniels v. Sunrise Senior Living, Inc.* (2013) 212 Cal.App.4th 674, 680, 683; see *Fitzhugh v. Granada Healthcare & Rehabilitation Center, LLC* (2007) 150 Cal.App.4th 469, 474.) “Generally speaking, one must be a party to an arbitration agreement to be bound by it. ‘The strong public policy in favor of arbitration does not extend to those who are not parties to an arbitration agreement, and a party cannot be compelled to arbitrate a dispute that he has not agreed to resolve by arbitration.’ ” (*Buckner v. Tamarin* (2002) 98 Cal.App.4th 140, 142.) The Nonsignatory Plaintiffs were not parties to the agreement in any capacity. Therefore, they cannot be compelled to arbitrate their wrongful death claim. (*Daniels, supra*, 212 Cal.App.4th at pp. 683-685.)

*Avila v. Southern California Specialty Care, Inc.* (2018) 20 Cal.App.5th 835 is instructive. In *Avila*, decedent executed a power of attorney form, naming plaintiff, his son, as his agent. (Id. at 838.) Approximately eight years after executing the power of attorney form, Decedent was transferred from another facility to the defendant, a long-term acute care hospital. (Ibid.) The day after admission, plaintiff signed a stack of documents, including an arbitration agreement, which purported to bind decedent and plaintiff for any claims relating to decedent’s hospitalization. (Ibid.) Decedent died five days after admission due to defendant’s neglect. (Ibid.)

Approximately a year after decedent’s death, plaintiff filed his complaint, asserting causes of action for negligence/willful misconduct, elder abuse, and wrongful death. (Id. at 838-839.) Defendant filed a motion to compel arbitration, which the trial court denied, concluding defendants had failed to show a valid arbitration agreement with respect to plaintiff; the trial court also exercised its discretion under section 1281.2, subdivision (c), and it

refused to order arbitration of the remaining claims, citing the risk of inconsistent rulings. (Id. at p. 839.)

The Court of Appeal affirmed, holding that *Ruiz v. Podolsky* (2010) 50 Cal.4th 838 was not controlling, as the *Avila* plaintiff's claims sounded in elder abuse, not medical/professional negligence. (*Avila, supra*, 20 Cal.App.5th at pp. 841-842.) Rejecting the defendants' attempts to distinguish *Daniels*, the *Avila* court held "What matters is not the license status of the defendant, but the basis of the claims as pleaded in the complaint. If the primary basis for the wrongful death claim sounds in professional negligence as defined by MICRA, then section 1295 applies. If, as plaintiffs claim here, the primary basis is under the Elder Abuse and Dependent Adult Civil Protection Act (Welf. & Inst. Code, § 15600 et seq.) (the Act), then section 1295 does not apply and neither does Ruiz's exception to the general rule that one who has not consented cannot be compelled to arbitrate." (*Avila, supra*, 20 Cal.App.5th at p. 842.)

While the *Avila* court acknowledged the complaint included allegations that could be categorized as either medical/professional negligence or elder abuse, it also recognized the reality that the complaint was pled under the Elder Abuse Act. "Plaintiffs, within the limits of established law, are essentially free to plead their case as they choose. They chose to plead a cause of action under the Act, and they did so successfully. The fact that they could have also pleaded a claim for medical malpractice, had they wished to do so, is irrelevant. Accordingly, we conclude the plaintiffs' claim is not one within the ambit of section 1295, and therefore, Ruiz's holding does not apply." (*Avila, supra*, 20 Cal.App.5th at p. 843.)

The *Avila* court then went on to recognize that, "In California, a wrongful death claim is an independent claim. 'Unlike some jurisdictions wherein wrongful death actions are derivative, Code of Civil Procedure section 377.60 "creates a new cause of action in favor of the heirs as beneficiaries, based upon their own independent pecuniary injury suffered by loss of a relative, and distinct from any the deceased might have maintained had he survived.'" [Citation.]" (*Avila, supra*, 20 Cal.App.5th at p. 844; *Daniels, supra*, 212 Cal.App.4th at pp. 680-681.) Since the *Avila* plaintiff signed the arbitration agreement as decedent's agent, there was no evidence he intended to waive his right to a jury trial for his personal claims; thus, the *Avila* court held the trial court did not err in finding no agreement to arbitrate existed as to the plaintiff. (*Avila, supra*, 20 Cal.App.5th at p. 845.)

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|   |                                             | <p>As in <i>Avila</i>, Plaintiff's Complaint alleges elder abuse, not medical malpractice, professional negligence, or common law negligence. As discussed, "If... the primary basis is under the [Elder Abuse Act], then section 1295 does not apply and neither does Ruiz's exception to the general rule that one who has not consented cannot be compelled to arbitrate." (<i>Avila, supra</i>, 20 Cal.App.5th at p. 842; <i>Daniels, supra</i>, 212 Cal.App.4th at pp. 683-684.)</p> <p>Therefore, the Petition is <b>GRANTED</b> as to the first cause of action for elder abuse – neglect, the third cause of action for negligence, and the fourth cause of action for violation of Residents' Bill of Rights (Health and Safety Code Section 1430(b)). This action is <b>STAYED</b> as to the second cause of action for wrongful death as to Plaintiffs Myrine Smith, Ronald Pascual, Normal Pascual, and Anthony Pascual. This court can lift the stay after the arbitrator issues his or her award. Once the arbitration award is confirmed by this court pursuant to Code Civ. Proc § 1287.6, the remaining cause of action for wrongful death can be adjudicated by this court.</p> <p>An ADR Review Hearing is scheduled for April 9, 2024 at 9:00 a.m. in Department N16.</p> <p>Defendant to give notice.</p> |
| 7 | Asics America Corporation vs Shoebacca LTD. | <p><b>Motion to Seal</b></p> <p><b>TENTATIVE RULING:</b><br/> Defendant and Cross-Complainant Shoebacca, Ltd.'s Motion to Seal Confidential Documents Filed in Support of Asics America Corporation's Answer to Shoebacca, Ltd.'s Second Amended Cross-Complaint is <b>GRANTED</b>.</p> <p>Plaintiff and Cross-Defendant Asics America Corporation's Answer to the Second Amended Cross-Complaint [ROA # 772] is sealed.</p> <p>The Court finds <i>Mercury Interactive Corp. v. Klein</i> (2007) 158 Cal.App.4th 60 addresses this particular issue, as information obtained from sealed and confidential discovery materials, and which are later incorporated into Plaintiff's Answer to the Second Amended Cross-Complaint, are not submitted "as a basis for adjudication," and thus do not become accessible to the public, simply by virtue of it becoming a part of the court file. (<i>Mercury, supra</i>, 158 Cal.App.4th at pp. 90, 103.)</p>                                                                                                                                                                                                                                                                                                                                                                        |